



STRATEGY & OPERATIONS

Vytalix Legal, Regulatory And Compliance Framework

Vytalix company-build documentation · reference
15_LEGAL_AND_REGULATORY

Status labels apply throughout: KNOWN, VERIFIED, ASSUMPTION, ESTIMATE, TO VALIDATE, PROPOSED. Nothing in this document claims traction, approvals, partners or revenue that do not exist. Governing file: FACTS_BASE.

PREPARED FOR

The Founder, Vytalix

DATE

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1.0 · Confidential draft

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Owner: Founder (acting Risk & Compliance lead) · **Status:** PROPOSED · **Version:** 1.0 (7 September 2026) ·

Governed by: /FACTS_BASE.md · **Related:** /docs/04_MATERNALINK_PRODUCT_STRATEGY.md §§15–21,
/docs/13_SALES_ENGINE.md §9

This document is not legal advice. It is a founder's compliance map. Every item marked **[SOLICITOR]**, **[ACCOUNTANT]** or **[REG-CONSULTANT]** requires qualified professional advice before action. Fees quoted with a URL were checked on 7 September 2026 via web search (6 searches used); everything else is ESTIMATE or TO VALIDATE.

Executive view

1. Vytalix has no legal entity, no ICO registration, no trademark, no contracts, no insurance and no policies (VERIFIED absence, FACTS_BASE §1). Nothing can be sold, banked, insured or granted until an entity exists; incorporation is therefore the first legal act, gated only by name clearance.
2. The two highest-consequence legal issues are (a) the undocumented MaternaLink IP relationship with David Agunede and (b) the naming conflict with VITALIX LTD (UK), Vytalix Inc. (US) and Vytalize Health (US). Both must be resolved before any brand spend, investor conversation or pilot contract.
3. MaternaLink (in development) v1 is deliberately scoped as non-diagnostic care-coordination software so that it sits outside UK medical-device regulation; that position holds only while the intended-use statement is enforced feature by feature. Any predictive or alerting feature triggers UK MDR 2002 / MHRA SaMD obligations.
4. Health data is special-category data under UK GDPR. Advisory and consulting work should be designed to process **no** patient data; MaternaLink will require a DPIA, ICO registration, a Clinical Safety Officer, DSPT and Cyber Essentials before any real-world deployment, and NDPA 2023 registration before any Nigerian deployment.
5. Budget for year-1 legal and compliance (ESTIMATE): £9k–£18k, of which solicitor fees for IP/shareholder documents £4k–£8k, trademark £1.5k–£3k including adviser, insurance £1.5k–£3.5k, ICO/Cyber Essentials/registrations £0.5k–£1k, contracts £2k–£4k. Non-negotiable items are flagged P0 in §14.

1. Corporate formation (Companies House)

Item	Position (PROPOSED)	Fact / cost	Flag
Entity type	Private company limited by shares, England and Wales	Standard for SEIS/EIS and investor readiness	[ACCOUNTANT] on group structure timing
Name	"Vytalix Group Ltd" or "Vytalix Health Technologies Ltd" (FACTS_BASE A1), subject to §8 clearance; the "Vitalyx" spelling is retired	Companies House rejects names "same as" an existing name; "similar" names can be challenged post-registration; VITALIX LTD ×2 exist (VERIFIED via search; registry TO VALIDATE)	[SOLICITOR] if a name objection risk is material

Item	Position (PROPOSED)	Fact / cost	Flag
Incorporation fee	Digital incorporation	£100 (digital) from 1 February 2026; £124 paper. Source: https://www.gov.uk/government/news/companies-house-fees-are-changing-from-1-february-2026 ; https://www.icaew.com/insights/viewpoints-on-the-news/2025/nov-2025/significant-hikes-to-companies-house-fees-in-2026	—
Confirmation statement	Annual	£50 digital (£110 paper) from 1 February 2026 (same sources)	—
Registered office	Founder's address or a registered-office service (ESTIMATE £30–£100/yr)	Address appears on the public register	—
Directors / PSCs	Founder as sole director initially; identity verification for directors/PSCs under the Economic Crime and Corporate Transparency Act (TO VALIDATE current mandatory date and process)	—	[ACCOUNTANT]
Share capital	e.g. 10,000 ordinary shares at £0.01 (ESTIMATE); leave headroom for an option pool and for any equity granted under the IP settlement (§8.3)	Model articles or bespoke articles	[SOLICITOR] if bespoke articles / share classes
Articles and shareholders' agreement	Model articles at incorporation; shareholders' agreement drafted before any second shareholder (including David Agunede if equity is the settlement)	ESTIMATE £1.5k–£4k	[SOLICITOR]
Bank account	Open immediately after incorporation (challenger banks are fastest; TO VALIDATE)	£0–£10/month	—
Accountant	Appoint on incorporation; Corporation Tax registration, PAYE if salaried, VAT decision (threshold £90,000 taxable turnover in 12 months — TO VALIDATE current threshold), R&D tax relief eligibility later	ESTIMATE £80–£200/month	[ACCOUNTANT]

Item	Position (PROPOSED)	Fact / cost	Flag
SEIS/EIS advance assurance	Apply once incorporated and a plan and prospective investor exist (HMRC generally expects an identified investor — TO VALIDATE)	£0 HMRC fee; adviser ESTIMATE £500–£1,500	[ACCOUNTANT]
Group structure	Single company first; subsidiaries (Health Solutions, E-Learning) only when revenue, IP or investors require them	Each subsidiary adds £100 + £50/yr + accounts	[ACCOUNTANT]
Statutory registers, PSC register, board minutes	Maintain from Day 1 in a "corporate" folder; first board minute records adoption of policies and IP assignments	—	—

Pre-incorporation selling: any engagement signed before the company exists is a personal contract of the founder (sole trader). Keep it short, insured (PI can be bought as a sole trader) and novate to the company on incorporation. [SOLICITOR] for the novation wording.

2. Data protection — UK GDPR and Data Protection Act 2018

2.1 Regulator and registration

- **ICO data-protection fee** (payable by most controllers): **Tier 1 £52** (max turnover £632k or ≤10 staff), **Tier 2 £78** (turnover ≤£36m or ≤250 staff), **Tier 3 £3,763**; £5 discount for direct debit; unchanged since February 2025. Sources: <https://ico.org.uk/for-organisations/data-protection-fee/data-protection-fee/> ; <https://ico.org.uk/for-organisations/data-protection-fee/> . Vytalix is Tier 1. Register within 21 days of starting to process personal data as a controller (TO VALIDATE that an exemption does not apply — it will not once a CRM and newsletter exist).
- **Data (Use and Access) Act 2025**: Royal Assent 19 June 2025; provisions phased in to June 2026, many effective 5 February 2026; amends UK GDPR, DPA 2018 and PECR (e.g. "recognised legitimate interests", complaints handling, some cookie changes). Sources: <https://ico.org.uk/about-the-ico/what-we-do/legislation-we-cover/data-use-and-access-act-2025/> ; <https://www.farrer.co.uk/news-and-insights/data-use-and-access-act-2025-five-key-changes-for-businesses/> . Policies must be drafted against the amended law. [SOLICITOR] or a data-protection consultant to confirm the current text.

2.2 Roles and processing inventory (PROPOSED)

Activity	Vytalix role	Data	Lawful basis (Art. 6)	Special-category condition (Art. 9 + DPA 2018 Sch. 1)
Sales CRM, outreach to business contacts	Controller	Business contact data	Legitimate interests (LIA documented)	n/a

Activity	Vytalix role	Data	Lawful basis (Art. 6)	Special-category condition (Art. 9 + DPA 2018 Sch. 1)
Newsletter, webinar registration	Controller	Name, email, employer	Consent (PECR requires consent for marketing email to individuals; corporate-subscriber rules TO VALIDATE)	n/a
Report interviews and surveys (professionals)	Controller	Opinions, role	Consent	n/a (avoid health data about the participant)
Advisory/consulting engagements	Usually neither (no personal data) or processor if client shares data	Ideally none; client documents	Contract (with client); processor terms if any personal data	Design engagements to exclude patient data; if unavoidable, DPA + client's Art. 9 basis
MaternaLink (in development) — UK deployment	Processor for the deploying NHS/private provider (controller); Vytalix controller for account/telemetry data	Health data, contact data, messages	Processor acts on controller instructions; controller's basis typically public task / legitimate interests + Art. 9(2)(h) health/social care with DPA 2018 Sch. 1 para 2	Health or social care purposes; confidentiality duty; common-law duty of confidentiality also applies in the NHS
MaternaLink — NGO/state deployment (Nigeria)	Processor or joint controller depending on programme design	Health data	NDPA 2023 (see §12) + UK GDPR if any processing in the UK	Explicit consent likely to be required under NDPA for sensitive data; TO VALIDATE
Employees/contractors	Controller	HR data	Contract / legal obligation	Where relevant (e.g. health, right-to-work)

2.3 Required documents and controls (P0 before MaternaLink processes any real data; P1 for services)

Control	Trigger	Owner	Deadline (PROPOSED)
ICO registration (Tier 1)	Incorporation + CRM live	Founder	Day 14
Privacy notice (website, CRM, newsletter)	Website live	Founder [SOLICITOR review]	Day 21
Record of processing activities (RoPA)	ICO registration	Founder	Day 30
Legitimate-interests assessment for B2B outreach	CRM live	Founder	Day 14
Data-retention schedule	RoPA	Founder	Day 30
Data-subject request procedure	RoPA	Founder	Day 30
Breach-response procedure (72-hour ICO notification rule)	RoPA	Founder	Day 30

Control	Trigger	Owner	Deadline (PROPOSED)
DPIA for MaternaLink (mandatory: large-scale special-category data, vulnerable individuals, new technology)	Before design freeze; updated before each deployment	Product lead + DPO/adviser	Day 60 (v0.1), Day 90 (v1)
Data Protection Officer	Mandatory where core activities involve large-scale processing of special-category data — likely once MaternaLink is live; appoint an outsourced DPO (ESTIMATE £200–£500/month) at first deployment; until then a named "data-protection lead" (founder)	Founder	First deployment
Processor contracts (Art. 28) with hosting, SMS/WhatsApp gateway, email, CRM, analytics	Any vendor touching personal data	Founder	Before use with personal data
International transfers: UK → Nigeria (no UK adequacy decision for Nigeria)	Any Nigeria deployment or in-country team access	Founder [SOLICITOR]	Before deployment: International Data Transfer Agreement (IDTA) or UK Addendum + transfer risk assessment; consider in-country hosting so that data does not leave Nigeria at all
UK → EU / EU → UK	EU clients or EU hosting	Founder	EU adequacy for the UK exists (TO VALIDATE renewal status); standard clauses where required
Cookies / PECR	Website analytics	Founder	Consent banner only if non-essential cookies are used; recommendation: privacy-preserving analytics with no cookies (see §10)
Training	Any hire/contractor	Founder	On joining; annual

2.4 NHS-specific data rules (apply to any MaternaLink UK deployment)

- Caldicott Principles; common-law duty of confidentiality; the deploying organisation's Caldicott Guardian sign-off.
- National Data Opt-Out applies to uses beyond individual care (e.g. research/evaluation) — TO VALIDATE applicability.
- DSPT annual submission ("Standards Met") for suppliers processing NHS patient data (see §3).
- Section 251 / Confidentiality Advisory Group approval if identifiable data is used for research without consent — avoid by design.

3. Healthcare regulation applicable in the UK

Regime	Does it apply to Vytalix?	Position
CQC registration (Health and Social Care Act 2008)	Only if Vytalix itself carries on a regulated activity (e.g. providing treatment, triage by clinicians it employs). Advisory/consulting and software supply are not regulated activities.	v1 design keeps clinical decisions and communications ownership with the deploying provider (who is CQC-registered). If Vytalix ever employs clinicians who give advice to women, re-assess. [REG-CONSULTANT] TO VALIDATE at v2

Regime	Does it apply to Vytalix?	Position
NHS DTAC	Applies to any digital tool bought by NHS organisations	Build the DTAC evidence pack in parallel with the MVP (see product strategy §21.3). Not a certification; assessed per buyer
DCB0129 (manufacturer clinical risk management)	Applies to Vytalix as the manufacturer of MaternaLink	Appoint a Clinical Safety Officer (registered clinician with training; contract ESTIMATE £300–£600/day, 2–4 days/month during build), open a hazard log, produce a clinical safety case report before any deployment
DCB0160 (deploying organisation)	Applies to the NHS trust deploying; Vytalix supports	Provide DCB0129 outputs to the trust's CSO
DSPT	Suppliers with access to NHS patient data	Register and submit before first deployment; target "Standards Met"
NICE Evidence Standards Framework	Not law; buyers use it	v1 → Tier B evidence expectations (TO VALIDATE mapping)
Procurement (Procurement Act 2023 regime; Provider Selection Regime for clinical services)	Applies to buyers	Understand direct-award thresholds; G-Cloud listing TO VALIDATE (see business model §2 #6)
Consumer law (Consumer Rights Act 2015; Digital Markets, Competition and Consumers Act 2024 consumer provisions)	E-Learning B2C sales	Refund/cancellation terms; clear pricing; auto-renewal transparency [SOLICITOR] for T&Cs
Advertising (CAP Code; ASA)	All marketing	No unsubstantiated health or efficacy claims; "MaternaLink (in development)"

4. Medical-device regulation — UK MDR 2002, MHRA, UKCA

Item	Position
Qualification	The UK Medical Devices Regulations 2002 (as amended) define a device by manufacturer's intended purpose. MaternaLink v1's intended-use statement (product strategy §21.1) excludes diagnosis, monitoring, prediction, prognosis and treatment, and excludes clinical decision support. Document the qualification decision with MHRA's software/AI-as-a-medical-device guidance cited (https://www.gov.uk/guidance/regulating-medical-devices-in-the-uk). [REG-CONSULTANT] to confirm the decision in writing — ESTIMATE £1,500–£4,000 for a qualification/classification opinion.
Intended-use control	Product charter rule: no feature ships that (a) applies thresholds to individual observations, (b) scores questionnaires for clinical purposes, (c) prioritises or triages by algorithm, or (d) produces a risk score, without a documented re-qualification. Change control owned by the product lead; CSO countersigns.
If a feature crosses the line	Likely Class I (UKCA self-declaration, MHRA registration, technical file, post-market surveillance) or Class IIa+ (UK Approved Body; ISO 13485 QMS, IEC 62304, ISO 14971, clinical evaluation). ESTIMATE £40k–£150k and 9–18 months for Class IIa. Post-market surveillance regulations in force since June 2025 (TO VALIDATE).

Item	Position
2026 reform	MHRA has published draft Medical Devices (Amendment) Regulations 2026 (pre-market reform: international reliance, updated classification, PCCP pathway for software, cybersecurity) and consulted (Feb 2026) on extending or making indefinite the recognition of CE-marked devices (current deadlines 30 June 2028 for MDD devices, 30 June 2030 for MDR/IVDR devices). Sources: https://www.hoganlovells.com/en/publications/uk-medical-devices-reform-mhra-publishes ; https://www.lw.com/en/insights/uk-mhra-launches-consultation-on-indefinite-recognition-of-ce-marked-medical-devices ; https://www.gov.uk/guidance/regulating-medical-devices-in-the-uk . An AI-as-a-medical-device framework is expected in 2026. All TO VALIDATE at the time of any device decision.
v3 AI research track	Research use under ethics approval is not placing a device on the market; any clinical investigation of a device requires MHRA notification/approval and HRA/REC approval.
Nigeria (NAFDAC)	NAFDAC regulates medical devices; position on standalone software TO VALIDATE (§12).

5. AI regulation

Jurisdiction	Position
UK	No horizontal AI statute (as at the last verified position; TO VALIDATE for 2026 developments). Sector regulators apply five principles (safety, transparency, fairness, accountability, contestability) — MHRA for devices, ICO for data (automated decision-making rules under UK GDPR Art. 22 as amended by the DUAA 2025), CQC/NHS for deployment. v1 uses no clinical AI; any non-clinical AI (e.g. translation, message drafting) must be disclosed, human-reviewed and excluded from clinical content without sign-off.
EU (only if EU sales)	EU AI Act (Regulation (EU) 2024/1689): AI that is a medical device or a safety component is "high-risk"; obligations phase in through 2026–2027 (TO VALIDATE dates). Avoid EU deployment of any AI feature until assessed. [SOLICITOR] with EU expertise if EU sales are pursued.
Nigeria	National AI strategy in development; NDPA 2023 governs automated decisions on personal data (TO VALIDATE).
Internal policy	AI-use policy (§9) covering: no patient data into third-party AI tools; disclosure; bias review for any model; model cards; human accountability.

6. Clinical governance

- **Clinical Advisory Group:** 3–5 clinicians (obstetrician, senior midwife, GP/public health, Nigerian clinician, lived-experience representative); terms of reference; conflicts register; minutes. Recruit from Day 30; first meeting by Day 90 (PROPOSED).
- **Clinical Safety Officer:** contracted before build week 1; owns DCB0129 outputs.
- **Content governance:** two-person sign-off (clinical author + reviewer), sources cited (NICE, RCOG, WHO, Nigeria FMOH), version and review date, content-incident route.
- **Incident management:** safety incidents to CSO within 24 hours; to deploying organisation per contract; MHRA Yellow Card if ever a device; lessons log.
- **Evaluation ethics:** service evaluation (no REC approval usually) vs research (HRA/REC approval); use the HRA decision tool; in Nigeria, NHREC/institutional ethics approval for any evaluation involving participants.

7. Safeguarding

- Adopt a safeguarding policy (adults and children) even though Vytalix does not deliver care: MaternaLink users may disclose abuse, self-harm or risk in messages; the deploying organisation's safeguarding lead owns the response; the platform must route and record, not assess.
- Under-18 users (pregnant adolescents): parental/guardian and competence considerations; product design for consent (product strategy §11 and §19).
- Staff/contractors with any user contact: DBS checks where applicable (TO VALIDATE; usually not required for non-contact software roles).
- Named safeguarding lead at Vytalix (founder until a clinical lead exists); training annually.

8. Intellectual property

8.1 Trademark clearance and filing

- **Conflicts identified (VERIFIED via search; registry status TO VALIDATE):** VITALIX LTD (UK company nos. 16813455 and 15155964), VITALX LTD, VYTAL(UK) LIMITED, Vytalyx Inc. (Austin, Texas; AI/blockchain health-tech; vytalyx.io), Vytalize Health (New Jersey; value-based care). Phonetic and visual similarity is high in Classes 9, 42 and 44.
- **Clearance process (Day 1–5):** (1) UK IPO trade-mark search for "Vytalix"/"Vitalyx"/"Vitalix"/"Vytalyx" in Classes 9, 35, 41, 42, 44; (2) EUIPO and USPTO knock-out searches; (3) Companies House name check; (4) domain and social-handle check; (5) written opinion from a trade-mark attorney (ESTIMATE £500–£1,500). [SOLICITOR / trade-mark attorney]
- **Decision rule:** if a registered UK/EU mark exists in Class 9/42/44 for a confusingly similar sign, or a US health-tech company with the near-identical name is active in the UK, **rename** before any brand spend. The brand system (/docs/03_BRAND_SYSTEM.md) is built for a low-cost rename.
- **Filing:** UK IPO fees from 1 April 2026: **£205 for one class, £60 per additional class** (previously £170/£50). Sources: <https://www.reddie.co.uk/2026/03/09/uk-trade-mark-fee-increases-from-1-april-2026/>; <https://www.citma.org.uk/resources/uk-ipo-announces-first-trade-mark-fee-increase-in-nearly-three-decades-mb25.html>; <https://www.ipo.gov.uk/tm3-servicesfees>. Four classes (9, 41, 42, 44) ≈ £385 official fees (ESTIMATE) plus attorney fees £600–£1,200. File "MaternaLink" separately once ownership is settled (§8.3); clear it against "Maternal Link" usage by David Agunede and third parties.
- Nigeria trademark (Trademarks Registry, Federal Ministry of Industry, Trade and Investment) once a Nigeria deployment is likely: TO VALIDATE fees and process; local agent required.

8.2 Copyright, code and content

- Copyright in code, decks, content and this repository vests in the author (or employer). The founder's own work is personal IP until assigned to the company: sign a **founder IP assignment** at incorporation (nominal consideration). [SOLICITOR] template.
- All contractors and developers: written contracts with present assignment of IP, moral-rights waiver, confidentiality (§9). No code merged without a signed agreement.
- Clinical/educational content: authorship and licence terms with every clinical co-author.

8.3 MaternaLink IP — David Agunede

- **Facts:** David Agunede signs as "Founder & CEO, Maternal Link"; authored/sent the Ekiti proposal, decks, charge sheet and negotiation sheet; a Vercel prototype exists with unknown authorship (VERIFIED,

FACTS_BASE §1). No agreement exists (VERIFIED gap).

- **Objective:** a signed written agreement by Day 30 (heads of terms by Day 7) that gives Vytalix clear title or an exclusive licence to the MaternaLink name, code, materials and relationships, and defines David's role.
- **Options (to be negotiated; [SOLICITOR] drafts):**

Option	Structure	Pros	Cons	When
A. Assignment for equity	David assigns all MaternaLink IP to Vytalix; receives shares (vesting, good/bad-leaver) and a defined role	Clean title; investor-ready	Dilution; needs shareholders' agreement	Preferred if David wants to build together
B. Assignment for cash + royalty	Assignment; modest cash and/or capped royalty on MaternaLink revenue	Clean title; no dilution	Cash now; royalty complicates later financing	If David wants out
C. Exclusive licence	Vytalix gets exclusive, worldwide, perpetual licence; David retains title	Faster	Investors dislike licensed core IP; termination risk	Interim only (≤6 months)
D. Joint venture	New entity co-owned	Shares risk	Two cap tables; complexity	Not recommended pre-seed
E. Rebuild cleanly	Vytalix builds v1 from scratch under its own name; no use of David's code, decks or "Maternal Link" name	No dependency	Loses prototype and relationships; possible confusion with "Maternal Link" mark	If no agreement by Day 60

- **Heads of terms must cover:** scope of IP (code, repos, hosting accounts, domain, name, decks, proposals, data); warranties on authorship and third-party code; no real patient data warranty; transfer of the Vercel project and any accounts; the Ekiti relationship (who speaks for what); confidentiality; non-compete/non-solicit reasonableness; role, time and compensation; dispute resolution; governing law (England and Wales).
- **Prototype audit before acceptance:** code provenance, licences of dependencies, secrets in repo, data held, security posture (product strategy §25).

8.4 Open-source hygiene

- Licence policy: permissive (MIT/Apache-2.0/BSD) allowed; copyleft (GPL/AGPL) only with approval; keep an SBOM; automated dependency and licence scanning in CI; no copied code of unknown origin.
- Vytalix's own repos: private by default; contribution agreement for any external contributor.

8.5 Trade secrets and confidentiality

- NDAs before sharing product detail; access controls; "confidential — draft" marking on decks; no proprietary detail in public posts beyond what is intended.

9. Contracts and policy set

9.1 Contract templates (all [SOLICITOR] before first use; ESTIMATE £2k–£4k for a starter set from a fixed-fee firm or a vetted template service)

Template	Use	Key Vytalix positions (PROPOSED)
Master Services Agreement (MSA)	Every consulting client	See /docs/13_SALES_ENGINE.md §9: fees, IP (Vytalix retains methods; client owns deliverables on payment), liability cap = fees paid in 12 months, mutual confidentiality, no patient data unless DPA, E&W law, publicity only with consent
Statement of Work (SOW)	Per engagement	Scope, deliverables, acceptance, milestones, change control, dependencies
Mutual NDA	Pre-sales, partners, investors (many investors will not sign — do not insist)	2–3 years; carve-outs; no non-compete
Consultancy/associate agreement	Associates delivering client work	IR35 status determination (client-side rules for medium/large clients; TO VALIDATE) [ACCOUNTANT]; IP assignment; confidentiality; no client solicitation
Contractor / developer agreement	Any code or design	Present IP assignment; moral-rights waiver; open-source policy; security obligations; data-protection clause
Advisory board letter	Advisers	Role, time (e.g. 2 hours/month), expenses, confidentiality, conflicts, optional equity (advisory shares with vesting — TO VALIDATE EMI/unapproved option treatment) [ACCOUNTANT]
Data Processing Agreement (Art. 28)	Any personal data processed for a client or by a vendor	Subject matter, duration, instructions, sub-processors, security, deletion, audit
Pilot / evaluation agreement (MaternaLink)	Design partners	Free or cost-recovery pilot; no clinical claims; DPIA and DPA annexed; CSO named on both sides; data ownership; publication rights; termination for safety
Letter of intent / MoU	Partners, ministries, NGOs	Non-binding except confidentiality; no exclusivity; no financial commitment
Heads of terms — IP (David Agunede)	§8.3	Non-binding except confidentiality and exclusivity of negotiation (30 days)
Website terms, privacy notice, cookie notice, acceptable-use policy	Website, newsletter	§10
E-Learning terms of sale	B2C/B2B courses	Consumer cancellation rights (14 days unless waived for immediate digital access), refund policy, no accreditation claims
Employment contract + staff handbook	First hire	Statutory minimum plus IP, confidentiality, data protection; pensions auto-enrolment [ACCOUNTANT]

9.2 Information-security and governance policy set (adopt at first board meeting; review annually)

#	Policy	Minimum content	Status
1	Information security policy	Scope, roles, risk approach, acceptable use, incident reporting	P0 (Day 30)
2	Access control and identity	MFA everywhere, least privilege, joiner/mover/leaver, password manager	P0

#	Policy	Minimum content	Status
3	Device and endpoint	Encryption, auto-updates, screen lock, no personal devices for patient data	P0
4	Data classification and handling	Public / internal / confidential / special-category; storage locations; encryption	P0
5	Backup and business continuity	RPO/RTO targets; tested restores; offline-first sync rules for MaternaLink	P1 (Day 60)
6	Incident response and breach notification	72-hour ICO rule; client notification; NDPC notification (72 hours, TO VALIDATE)	P0
7	Secure development lifecycle	Code review, dependency scanning, secrets management, pen test before deployment, OWASP ASVS target	P1
8	Supplier / sub-processor management	Due diligence, DPAs, register, annual review	P1
9	Data protection policy + retention schedule	\$2	P0
10	AI-use policy	\$5	P1
11	Clinical safety management policy	DCB0129 alignment; CSO; hazard log	P1 (before build)
12	Safeguarding policy	\$7	P1
13	Anti-bribery and corruption (Bribery Act 2010 — extraterritorial; relevant to government sales in Nigeria)	Gifts/hospitality register; agents due diligence; no facilitation payments	P0 before any government interaction
14	Conflicts of interest	Register (founder's other venture Kemek Enterprise Ltd; advisers)	P0
15	Equality, diversity and inclusion; whistleblowing; health and safety (from first employee)	Statutory	P2
16	Business ethics / claims policy	FACTS_BASE language rules as company policy	P0

10. Website terms, privacy and cookies

- **Company details** (Companies Act 2006 / E-Commerce Regulations): registered name, number, registered office and (if VAT-registered) VAT number on the website and emails once incorporated.
- **Privacy notice**: who we are; what we collect (forms, newsletter, analytics); purposes and lawful bases; retention; recipients/processors; international transfers; rights; ICO complaint route; DPO/contact.
- **Cookies**: preferred design is no non-essential cookies (privacy-preserving, cookieless analytics — TO VALIDATE that the chosen tool sets no identifiers); then no consent banner is needed, only a short cookie notice. If marketing pixels are ever added, a compliant consent tool is required (DUAA 2025 changed some low-risk cookie rules — TO VALIDATE).
- **Terms of use**: no clinical advice; content for information only; MaternaLink is in development; limitation of liability; governing law.
- **Accessibility statement**: WCAG 2.2 AA target; not a public-sector obligation but expected by NHS buyers.
- **Forms**: state where data goes and how long it is kept, at the point of capture.

11. Insurance (ESTIMATE premiums for a pre-revenue, one-person UK consultancy; TO VALIDATE with a broker; buy PI before the first paid engagement)

Cover	Limit (PROPOSED)	Why	Annual premium (ESTIMATE)	When
Professional indemnity (PI)	£1m (rising to £2m–£5m when NHS contracts require)	Advisory errors; contract requirement; MSA references it	£400–£900	Before first paid engagement (Day 14–21)
Public liability (PL)	£2m	Client sites, events	£100–£250	With PI
Cyber and data	£500k–£1m	Breach costs, notification, extortion; NHS buyers increasingly require it	£500–£1,500	Before any personal data at scale; P0 before MaternaLink deployment
Directors' and officers' (D&O)	£1m	Personal liability; investors often require on investment	£400–£1,000	On first external investment or first non-founder director
Employers' liability (EL)	£10m (statutory minimum £5m)	Legally required once there is an employee (including some contractors/volunteers — TO VALIDATE)	£150–£400	First employee
Product liability / technology E&O extension	£1m–£2m	Software supply to health providers	Included/added to PI package; £300–£800	Before first MaternaLink deployment
Clinical trials / medical malpractice	n/a in v1	Only if Vytalix clinicians give advice or a device study runs	TO VALIDATE	If ever applicable
Travel (Nigeria)	Business travel incl. medical evacuation	Founder travel	£150–£400	Before first trip

Total year-1 ESTIMATE: £1.5k–£3.5k (PI + PL + cyber), rising to £3k–£6k with D&O and EL.

12. International

12.1 Nigeria

Item	Position	Flag
Corporate presence	Options: (a) contract via a local implementing partner (NGO or company) — preferred for pilots; (b) register a Nigerian subsidiary with the Corporate Affairs Commission (CAC) once a state contract is realistic; foreign-owned companies have minimum share-capital and permit requirements (business permit, expatriate quota if staff relocate) — TO VALIDATE current thresholds and CAC fees (search did not return a reliable current figure)	Nigerian counsel [SOLICITOR]

Item	Position	Flag
Data protection — NDPA 2023	Nigeria Data Protection Act 2023 (in force 12 June 2023); regulator NDPC; General Application and Implementation Directive (GAID) 2025. Registration required for "data controllers/processors of major importance" — includes any entity processing personal data of more than 200 data subjects in six months (per NDPC guidance) — so MaternaLink at any pilot scale must register; annual compliance audit returns are filed via a licensed Data Protection Compliance Organisation (DPCO); penalties for late registration (waiver possible within 6 months of incorporation). Sources: https://ndpc.gov.ng/wp-content/uploads/2025/07/NDP-ACT-GAID-2025-MARCH-20TH.pdf ; https://www.lexology.com/library/detail.aspx?g=84330fb0-4a3f-4588-8a60-89951306f7e5 ; https://kpmg.com/ng/en/home/insights/2024/03/nigeria-data-protection-commissions-guidance-notice-on-registration-of-data-processors-controllers-of-major-importance.html ; https://ndpc.gov.ng/dpco-registration-requirements/ . Fees TO VALIDATE. Sensitive (health) data: explicit consent and other conditions; DPO likely required for major-importance entities; cross-border transfer rules (adequacy/consent/contract) apply to Nigeria → UK flows	Nigerian counsel; DPCO
NAFDAC	Medical-device regulator; software treatment TO VALIDATE; v1 non-diagnostic scope intended to stay outside	[REG-CONSULTANT]
NHREC	National Code of Health Research Ethics; any evaluation with participants needs NHREC-registered committee approval (state/institutional HREC)	Before any pilot evaluation
Telecoms (NCC)	Sender-ID registration, DND rules, bulk SMS licensing via gateway; WhatsApp Business policy	Gateway vendor to confirm
Anti-bribery	UK Bribery Act 2010 applies to Vytalix conduct abroad; Nigerian ICPC/EFCC laws; agents and "facilitators" need due diligence and written contracts	Policy §9.2 #13
Tax	Withholding tax on service fees paid from Nigeria (rates TO VALIDATE); UK–Nigeria double-tax treaty; VAT on digital services; permanent-establishment risk if founder works in-country for extended periods	[ACCOUNTANT] with Nigeria expertise
FX and payment	Invoice in GBP/USD; mobilisation ≥30% before work (sales engine \$16); FX controls TO VALIDATE	—

12.2 South Africa (if scored as third market)

- POPIA (in force 1 July 2021): Information Regulator; information-officer registration; special personal information (health) requires authorisation/consent conditions; cross-border transfer rules (s.72); prior authorisation for certain processing. Health Professions and NDoH digital-health strategy; SAHPRA for devices (software TO VALIDATE). [SOLICITOR] South African counsel.

12.3 Kenya (if scored as third market)

- Data Protection Act 2019: Office of the Data Protection Commissioner; **registration of data controllers/processors** (mandatory above thresholds; fees TO VALIDATE); health data is sensitive personal data; Health Data Regulations; cross-border transfer conditions (s.48–49). Kenya Digital Health Act 2023 (TO VALIDATE current status) governs health information systems; Pharmacy and Poisons Board for devices. [SOLICITOR] Kenyan counsel.

12.4 EU

- Only relevant if EU customers/data: EU GDPR representative (Art. 27) if no EU establishment; EU AI Act (§5); EU MDR for devices; CE marking.

13. Risk register (legal, regulatory and compliance)

Scale: Likelihood L/M/H · Impact L/M/H · Score = L×I (1–9)

#	Risk	L	I	Score	Mitigation	Owner	Review
R1	MaternaLink IP dispute or no agreement with David Agunede	H	H	9	Heads of terms Day 7; solicitor Day 10; Option E fallback at Day 60	Founder	Weekly
R2	Name/trademark conflict forces rename or opposition	M	H	6	Clearance before spend; attorney opinion; rename plan	Founder	Day 5, then monthly
R3	Over-claiming (clinical/AI/partner) in materials or posts	M	H	6	FACTS_BASE language policy; deck review; claims sign-off	Founder	Every publication
R4	Feature creep makes MaternaLink a medical device without a pathway	M	H	6	Intended-use control; qualification decision; CSO countersign	Product lead + CSO	Each release
R5	Processing patient data without lawful basis/DPIA (e.g. prototype holding real data)	M	H	6	Prototype audit; no real data rule; DPIA before any deployment	Founder	Day 30
R6	Breach or security incident on a weak prototype	M	H	6	Move to controlled hosting; MFA; pen test; cyber insurance	Founder/CTO	Day 30
R7	Selling without entity/insurance → personal liability	H	M	6	Incorporate Day 14; PI before first engagement; short pre-incorporation contracts	Founder	Day 14
R8	Nigeria: NDPA non-registration, unlawful transfers, ethics gaps	M	M	4	Local partner; NDPC registration; in-country hosting; NHREC approval	Founder + counsel	Before pilot
R9	Bribery/agent risk in government sales	L	H	3	Policy; due diligence; no agents on success fees without counsel	Founder	Before any agent
R10	IR35 / employment-status misclassification of associates	M	M	4	Status determinations; written contracts; accountant advice	Founder	Per associate
R11	Consumer-law breach in e-learning sales	L	M	2	Terms reviewed; cancellation rights; no accreditation claims	Founder	Before launch
R12	SEIS/EIS eligibility lost through structure or activity	M	M	4	Advance assurance; accountant review before any non-qualifying activity	Accountant	On incorporation
R13	Contractor code with incompatible open-source licences	M	M	4	Licence policy; scanning; contractor warranties	CTO	Each release
R14	Conflicts of interest with founder's other venture (Kemek)	M	L	2	Register; time-allocation rule; separate CRMs	Founder	Quarterly
R15	Regulatory change (MHRA 2026 reform, DUAA, NDPA guidance)	H	M	6	Quarterly regulatory watch; adviser check before each major release	Founder	Quarterly

14. Compliance calendar (first 12 months)

When	Action	Priority	Professional
Day 1–5	Trademark/name clearance; IP heads of terms with David Agunede	P0	Attorney; solicitor
Day 5–14	Incorporate (£100); bank; accountant; founder IP assignment; conflicts register; anti-bribery and claims policies	P0	Accountant; solicitor
Day 14	ICO registration (£52); LIA for outreach; PI + PL insurance quotes	P0	—
Day 21	Website legal pages; privacy notice; MSA/SOW/NDA sent to solicitor	P0	Solicitor
Day 30	IP agreement signed; prototype audit complete; security policy set (P0 items); RoPA; SEIS/EIS advance-assurance application	P0	Solicitor; accountant
Day 45	Trademark application filed (£205 + £60/class); CSO identified; regulatory qualification opinion commissioned	P1	Attorney; reg consultant
Day 60	DPIA v0.1; clinical safety management policy; contractor agreements in use; Cyber Essentials self-assessment started (£300 + VAT micro tier; sources: https://www.ncsc.gov.uk/cyberessentials/overview ; https://www.isms.online/cyber-essentials/cost/)	P1	—
Day 90	Cyber Essentials certified; DSPT registration; DTAC evidence pack skeleton; advisory board letters	P1	—
Month 6	Cyber Essentials Plus (ESTIMATE £1,500–£3,000 + VAT); pen test (ESTIMATE £3k–£8k); DPO appointed if deployment imminent; D&O on first investment	P1	Certification body
Month 9	NDPC registration via DPCO if Nigeria pilot; Nigerian counsel; IDTA/transfer risk assessment	P1	Nigerian counsel
Month 12	Annual policy review; confirmation statement (£50); ICO renewal; insurance renewal; ISO 27001 gap assessment (certification later, ESTIMATE £8k–£20k)	P2	Accountant

Priorities / Risks / Next actions

Priorities

1. Resolve IP with David Agunede (heads of terms Day 7; signed Day 30) and clear the name (Day 5) — nothing else is safe until these are done.
2. Incorporate, insure, register with the ICO, adopt the P0 policy set (Day 14–30).
3. Lock MaternaLink's intended use and clinical-safety governance before any build work (CSO, hazard log, DPIA, qualification opinion by Day 60).

Risks — see §13; the top four (R1, R2, R3, R4) are all founder-controllable within 60 days.

Next actions

Action	Owner	Deadline	Professional
Run UK IPO/EUIPO/USPTO/Companies House searches; brief a trade-mark attorney	Founder	Fri 18 Sept 2026	Attorney
Hold the David Agunede conversation; send draft heads of terms	Founder	Wed 16 Sept 2026	Solicitor from Day 10
Shortlist 3 fixed-fee start-up solicitors and 3 accountants; instruct one each	Founder	Fri 18 Sept 2026	—

Action	Owner	Deadline	Professional
Incorporate and open bank account	Founder	Fri 25 Sept 2026	Accountant
ICO registration; PI/PL insurance bound	Founder	Fri 2 Oct 2026	Broker
Adopt P0 policies at first board minute	Founder	Tue 13 Oct 2026	—